

Tentative Rulings for August 11, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2202616	MARRON vs GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Timeliness of Motion

Defendant first argues, citing *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644, Plaintiffs' motion is untimely because it was filed 995 days after the case settled.

The *Hatlevig* court discussed the rules for determining the deadline for a motion for attorney's fees, then stated:

We must next determine the date of dismissal. With exceptions not relevant to this case, when a case settles the plaintiff must serve and file a request for dismissal of the entire case within 45 days. ... If the plaintiff does not do so, the court must dismiss the case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed. ... On June 2, 2023, Hatlevig's counsel notified the trial court the case had settled, and the court ordered a dismissal filed within 45 days. Apparently to satisfy due process requirements, the clerk later mailed the parties notice the case would be deemed dismissed without prejudice on August 15, 2023, unless a dismissal was filed or a party showed good cause why the case should not be dismissed. (See *Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 510, 33 Cal.Rptr.2d 572 [due process requires notice to parties before court may dismiss case 45 days after receiving notice of settlement].) That date came and went, but no dismissal was filed and no good cause was shown why the case should not be dismissed. When a case settles, a dismissal of the action generally follows as a matter of law. ... Hence, consistent with the notice of dismissal, the case was dismissed without prejudice on August 15, 2023.

(*Hatlevig, supra*, 118 Cal.App.5th at 649-650 [internal quotations and citations omitted].)

Here, the case settled in October 2023, and on October 9, 2023, Plaintiff filed a notice of settlement, in which he stated he would dismiss the case by November 27, 2023. Also on October 9, 2023, the Court set an OSC re: dismissal of the action following notice of settlement, which the Court continued *eight* times at the request of Plaintiff's counsel before dismissing the action with prejudice on October 6, 2025, two years after the notice of settlement was filed. Prior to several of the dates set for OSC, counsel for Plaintiff submitted a declaration stating there was good cause for a continuance because "Plaintiff's attorneys' fees, costs, and expenses remain unresolved," and he "intends to file a noticed motion for attorney's fees with the court." (See Decls. Of Matthew Treybig in Response to OSC, dated 2/22/24, 5/23/24, 2/25/25, 6/24/25, and 10/6/25, at ¶¶ 5-6.) Each of these declarations was virtually identical, and no actual

reason was provided for why the issue of Plaintiff's attorney's fees and costs remained unresolved, or why a motion for attorney's fees had not been filed at any time in the preceding two years. (*Ibid.*) Counsel for Plaintiff filed two additional declarations stating the same thing, seeking to continue the OSC re: dismissal set after the Court set aside the dismissal it entered. (See, Decls. Of Matthew Treybig in Response to OSC, dated 3/9/26 and 6/11/26.) Furthermore, in his October 6, 2025 declaration, Treybig stated that he was "diligently working on a motion for attorneys' fees." (Decl. Of Matthew Treybig in Response to OSC, 10/6/25, at ¶ 6.) Despite this, the present motion was still not filed until June 26, 2026, eight-and-a-half months later; five months after the dismissal was set aside; and almost three years after the Court was notified that the case settled. However, while it appears from the record that Plaintiff egregiously and unreasonably delayed filing the present motion, there is no legal basis for finding it is untimely. Unlike in *Hatlevig*, the Court here set aside the dismissal of the action, and at the most recent OSC ordered Plaintiff to file a motion for attorney's fees by June 30, 2026. The motion was filed on June 26, 2026. Thus, it is timely. (See, CRC 3.1702(b), 8.104(1)(a).)

Untimely Opposition

Plaintiff argues Defendant's opposition was untimely and should therefore not be considered. Pursuant to C.C.P. § 1005(b), all papers opposing a motion "shall be filed with the court and a copy served on each party at least nine court days ... before the hearing." The present motion is set to be heard on August 11, 2026. July 29, 2026 is 9 court days prior to August 11, 2026, but the opposition was not filed until July 31, 2026. Therefore, Defendant is correct that the opposition is untimely. However, the Court has discretion to consider an untimely opposition. (See, CRC 3.1300(d); *Slayton v. Superior Court* (2006) 146 Cal.App.4th 55, 58, n. 2; *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29.) Additionally, challenging a motion or opposition on the merits rather than only objecting to the untimeliness may constitute a waiver of any objection to its untimeliness. (See, *Clark v. Stabond Corp.* (1987) 197 Cal.App.3d 50, 59.) In the present case, the Court considers Defendant's opposition despite it being filed two days late because Plaintiff still had sufficient time to file a substantive reply, so he was not prejudiced by the delay.

Merits

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Ibid.*) There is no dispute that Plaintiffs are the prevailing party in this case.

At issue in this motion is the reasonableness of Plaintiffs' request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) The

court must determine whether the amount requested is reasonable based on the circumstances of the case, including factors such as the complexity of the case, procedural demands, skill exhibited, and results achieved, and the court may reduce the amount if it is determined to be unreasonable. (*Goglin v. BMW of North America* (2016) 4 Cal.App.5th 463, 470; see also, *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 [factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure].)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242; see also, *Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Ibid*; see also, *Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

The prevailing buyer in a Song Beverly Act action has the initial burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Once the initial burden is met, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours, the hourly rate, or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

In the present case, Plaintiffs' counsel's billing records indicate a lodestar figure of \$25,314.50, based on 64.6 hours spent on the case. The rate is unopposed. Defendant makes specific challenges to various items. First, NTA improperly billed 6.9 hours on clerical tasks, which results in a reduction of **\$2,010** (5.1 hours x \$200/hour + 1.8 hours x \$550/hour). Additionally, while there is no question that Plaintiffs' counsel has significant lemon law experience, based on the billing records provided, the counsel's utilization of various forms and canned motions did not result in the significant savings it should have. Based upon GM's specific challenges to the billing records, the following is adjusted:

Work	Hours billed	New Reduced Hours	Hourly Rate	Reduction
Draft motion to compel further responses to RFPs, set 1 and reply	5.0	3.0	\$425	\$850
Draft motion to compel further responses to RFP, set 2 and reply	8.1	3.0	\$350	\$1,785
Clerical tasks/case management	1.5	0	\$400	\$600

OSC related tasks	3.7	0	\$450 ¹	\$1,665
Motion for attorney's fees	4.8	2.5	\$395	\$908
Prepare reply and attend hearing on motion	8.1	2.5	\$495	\$2,772
			Total:	\$8,580

As the OSC hearings and declarations and orders related thereto were only necessary because of Plaintiff's unreasonable delays in filing this motion for almost 3 years, the fees incurred were not reasonable and necessary (OSC related tasks for 3.7 hours). Also, Plaintiff estimates he will incur an additional \$4,000 in attorney's fees for reviewing the opposition, preparing the reply, and attending the hearing on this motion (Prepare reply and attend hearing on motion for 8.1 hours). Using the hourly rate of \$495 (see Decl. of Kevin Jacobson iso Reply), this comes out to approximately 8.1 hours. While counsel states in the reply declaration that he spent 4.8 hours and expects to spend an additional 2 hours to prepare for and attend the hearing, he did not revise the amount sought.

Accordingly, the total stated lodestar is discounted by \$8,580, which results in a reduced fee award of \$16,734.50 (\$25,314.50-\$8,580).

Further, there should be no multiplier. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) Here, there is no reason for an enhancement. This was not a complicated case, there was no exceptional quality of work, and the alleged risk due to counsel's contingency fee should already be accounted for in counsel's hourly rate.

The court grants the motion and award attorney's fees in the reduced but reasonable amount of \$16,734.50 (\$25,314.50-\$8,580).

¹ This is a blended rate based upon multiple attorneys, billing at \$395, \$400, \$500, and \$525, doing these tasks.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2306811	MALCOLM vs SANTILLAN	MOTION TO VACATE DISMISSAL OF COMPLAINT

Tentative Ruling:

The motion is denied. Moreover, if the parties pursuant to their settlement agreement stipulated that the court retain jurisdiction over the parties to enforce the settlement pursuant to Code of Civil Procedure section 664.6, as claimed by the moving party, the dismissal does not affect moving party's ability to seek enforcement. Accordingly, there is no valid reason to vacate the dismissal.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404633	DAVALOS vs WASTE MANAGEMENT COLLECTION AND RECYCLING, INC.	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling:

Defendant moves for summary judgment, or in the alternative, summary adjudication on the grounds there are no triable issues of material facts as to all 9 causes of action and Plaintiff's claim for punitive damages.

Plaintiff has not filed an opposition. Trial is currently set for September 4, 2026.

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) A defendant can meet the initial burden by showing that one or more elements of the causes of action cannot be established, or that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claim fails as a matter of law. (*Erikkson v. Nunnick* (2011) 191 Cal.App.4th 826, 849.) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain such evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

A motion for summary judgment should be granted if no triable issue exists as to any material fact and the moving party is entitled to a judgment as a matter of law. (*Kahn v.*

East Side Union High School Dist. (2003) 31 Cal.4th 990, 1002-1003.) Once the movant's burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at 850.) "Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*American Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1048.)

"Summary adjudication motions are procedurally identical to summary judgment motions." (*Serri v. Santa Clara Univ.* (2014) 226 Cal.App.4th 830, 859.) It is improper for the court to weigh the evidence or determine the credibility on a motion for summary judgment or adjudication. (*Binder v. Aetna Life Insurance Co.* (1999) 75 Cal.App.4th 832, 840.)

Defendant's memorandum of points and authorities frames the MSA by claims. Defendant's Notice of Motion frames the MSAs by issues. Thus, the analysis will accordingly be by the issues. (Cal. Rules of Court, rule 3.1350(b) [If summary adjudication is sought, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts].)

a. Issues 1, 2, 3, 6 and 7 – Statute of Limitations and Merits of 1st (Improper Wage Statements) and 3rd (Failure to Pay Overtime Wages) Causes of Action

Labor Code section 510 provides that a non-exempt employee shall be paid at a rate of no less than 1.5 times the regular rate of pay for any work in excess of 8 hours in one workday and in excess of 40 hours in any workweek.

Labor Code section 226, subdivision (a) requires specific information on the wage statements. An employee is deemed to suffer injury if the employee cannot promptly and easily determine the following:

- (i) The amount of the gross wages or net wages paid to the employee during the pay period or any of the other information required to be provided on the itemized wage statement pursuant to items (2) to (4), inclusive, (6), and (9) of subdivision (a).
- (ii) Which deductions the employer made from gross wages to determine the net wages paid to the employee during the pay period. Nothing in this subdivision alters the ability of the employer to aggregate deductions consistent with the requirements of item (4) of subdivision (a)
- (iii) The name and address of the employer and, if the employer is a farm labor contractor, as defined in subdivision (b) of Section 1682, the name and address of the legal entity that secured the services of the employer during the pay period.
- (iv) The name of the employee and only the last four digits of his or her social security number or an employee identification number other than a social security number.

(Labor Code §226(e)(2)(B).)

Defendant contends the overtime claim is subject to the three-year statute of limitations, and because the wage statement claim is derivative of the overtime claim, it is also time-barred.

Here, the FAC was filed on February 11, 2025 and alleges, “dating back 3 years from the filing of this First Amended Complaint, Plaintiff was made to work overtime on numerous occasions well over 14 hours a shift and was directed by the Defendant to not clock in those overtime hours, clearly indicating intent on the part of Defendant to evade paying Plaintiff his overtime.” (FAC ¶37.)

As to the wage statement, the FAC alleges, “Dating back 3 years from the filing of this First Amended Complaint, Plaintiff claims that he was intentionally not provided with accurate wage statements by Defendant, pursuant to Labor Code section 226(a), because it was Defendant’s intent to avoid paying Plaintiff the correct wages that he was legally entitled to. Specifically, because Defendant incorrectly paid Plaintiff’s wages (on hourly basis), failed to indicate all hours actually worked by Plaintiff (including the overtime hours worked over 14 hours),...” (FAC ¶27.)

In a motion for summary judgment, the complaint limits the issues. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1247; *Zimmerman Rosenfield, Gersh & Leeds LLP v. Larson* (2005) 131 Cal.App.4th 1466, 1489.) Defendant presents evidence that the failure to pay overtime wages and inaccurate wage statements occurred prior to the “3 years from the filing of [the] First Amended Complaint.”

At deposition, Plaintiff admitted that the dates on which he claims to have not received overtime occurred in 2019. (UF #55, 57.) Plaintiff further admitted that during his termination meeting on August 18, 2022, he signed his termination letter, which confirmed he was given his final paycheck that included payment for four hours of work for “show up time” on August 18, 2022, 24 hours of unused sick time, 24 hours of unused personal time, and 64.22 hours of unused vacation time. (UF #42.) By signing his termination letter, Plaintiff certified that Defendant “does not owe [him] any other amounts.” (UF #43.) Moreover, Plaintiff admitted in this termination meeting that he did not advise Torres that Plaintiff was owed any additional wages. (UF #44.)

Based on the foregoing, Defendant met its initial burden of persuasion of showing the 1st and 3rd causes of action are time-barred under Code of Civil Procedure section 437c, subdivision (b)(3). The burden now shifts to Plaintiff. Because Plaintiff did not present any evidence in support to rebut Defendant’s evidence, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

- b. 2nd Cause of Action: Failure to Pay Wages Upon Termination of Employment*
- There are no triable issue of material fact because (Issue 4) this claim is derivative of the 3rd cause of action for failure to pay overtime and (Issue 5) Plaintiff cannot prove that any alleged failure to pay wages was willful, knowing and intentional

Labor Code sections 201 and 202 provide that when an employer discharges an employee, all wages earned and unpaid are immediately due and payable.

As discussed above, Plaintiff confirmed he was given his final paycheck, certified that Defendant “does not owe [him] any other amounts,” and admitted at his termination meeting that he did not advise Torres that Plaintiff was owed any additional wages. (UF #42-44.)

Defendant met its initial burden of persuasion as to the 2nd cause of action under Code of Civil Procedure section 437c, subdivision (b)(3). The burden now shifts to Plaintiff. Because Plaintiff did not present any evidence in support to rebut Defendant’s evidence, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

- c. 4th Cause of Action: Disability Discrimination – There are no triable issues of material fact because (Issue 8) Plaintiff cannot establish a prima facie case for this claim as there is no evidence of a causal connection between his disability and his request for modified duty and/or termination; and (Issue 9) because Defendant has articulated a legitimate, nondiscriminatory reason for Plaintiff’s termination and Plaintiff cannot produce substantial responsive evidence of pretext*

The elements of disability discrimination are that the plaintiff “(1) suffered from a disability, or was regarded as suffering from a disability; (2) could perform the essential duties of the job with or without reasonable accommodations, and (3) was subjected to an adverse employment action because of the disability or perceived disability.” (*Sandell v. Taylor-Listug, Inc.* (2010) 188 Cal.App.4th 297, 310.)

Here, Plaintiff suffered from a work-related knee injury he sustained on August 9, 2022 and reported this injury the next day to Route Manager Jonathan Ortuno. (UF #9, 23-24.) Plaintiff was taken to the clinic on August 10, 2022 and returned to work the same day. (UF #25-26.) Plaintiff was placed on modified duty consistent with his doctor’s instruction and worked modified duty for the remainder of the shift. (UF #26-27.) On August 12, 2022, Plaintiff was advised that his employment was being suspended effective immediately pending investigation into his failure to immediately report his August 9, 2022 injury. (UF #30.) After the investigation, Torres terminated Plaintiff’s employment on August 18, 2022. (UF #31-41.)

Although Defendant disputes a causal link between any adverse employment action with the protected activity, “[c]ircumstantial evidence such as proximity in time between protected activity and alleged retaliation may establish a causal link.” (*Morgan v.*

Regents of Univ. of Cal. (2000) 88 Cal.App.4th 52, 69.) Even if a long period has elapsed between the protected activity and the adverse employment action, “a causal connection between them would still be established so long as the [defendant] engaged in a pattern of conduct consistent with a retaliatory intent.” Here, Plaintiff was terminated 8 days after he reported his medical disability and requested modified work duties thus establishing a causal link under *Morgan*.

Pretext

If a prima facie case exists for disability discrimination, the burden shifts to the employer to provide evidence that there was a legitimate, non-retaliatory reason for the adverse employment action. (*Morgan, supra*, 88 Cal.App.4th at 68.) If the employer produces evidence showing a legitimate reason for the adverse employment action, the burden shifts back to the employee to provide “substantive responsive evidence” that the employer’s proffered reasons were untrue or pretextual. (*Loggins v. Kaiser Permanent International* (2007) 151 Cal.App.4th 1102, 1108-09.)

Defendant argues Plaintiff was terminated for a reasonable and lawful reason: violating the terms of the Collecting Bargaining Agreement (“CBA”) governing Plaintiff’s employment. Here, Plaintiff acknowledged receipt of Defendant’s Employee Handbook, which contains Defendant’s safety rules and policies. (UF #5, 7-8, 12.) Plaintiff was a member of a union during his employment and some of the terms and conditions of his employment were governed by the CBA. (UF #9, 11.) One of Defendant’s safety rules and policies requires employees to report “all workplace injuries and illnesses as soon as reasonably possible after becoming aware of the injury or illness. If an employee is at work when they become aware of an injury or illness, absent special circumstances, the employee is required to report a work injury or illness before continuing to engage in any work. Employees should not clock out before reporting any known injury or illness.” (UF #12-15.) The CBA provides that four infractions in a twelve-month period “shall lead to discipline up to and including discharge.” (UF #16.) Plaintiff was terminated in August 2022 after he failed to report an injury in violation of Defendant’s Employee Handbook and CBA because Plaintiff’s failure to report his August 9, 2022 injury until August 10, 2022 was Plaintiff’s fourth infraction in an 8-month period. (UF #19-41.) Plaintiff’s union initially filed a grievance on his behalf to investigate the merits of Plaintiff’s termination but ultimately determined that the grievance lacked merit. (UF #46-47.) The union informed Plaintiff in a letter that Defendant provided “substantial evidence” that Plaintiff violated the Employee Handbook and CBA by failing to report an accident. (UF #48.)

Based on the foregoing, Defendant met its initial burden of persuasion as to the 4th cause of action under Code of Civil Procedure section 437c, subdivision (b)(3). The burden now shifts to Plaintiff. Because Plaintiff did not present any evidence in support to rebut Defendant’s evidence, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

- d. 5th Cause of Action: Failure to Engage in the Interactive Process – There is no triable issue of material fact because (Issue 10) Plaintiff was reasonably accommodated and (Issue 11) Plaintiff testified that he discussed his doctor’s note with his supervisor*

An employer has an obligation to engage in a “timely, good faith interactive process...in response to a request for reasonable accommodation by an employee or applicant with a known physical or mental disability of known medical condition.” (Gov. Code § 12940, subd. (n).) “The purpose of the interactive process is to determine what accommodation is required.” (*A.N. v. Albertsons, LLC* (2009) 178 Cal.App.4th 455, 464.) The more restrictions the employee requires, the fewer jobs may be available. (*Id.*) The employee has the burden of proving that there is a reasonable accommodation available before an employer will be held liable. (*Nadaf-Rahrov v. Neiman Marcus Group, Inc.* (2008) 166 Cal.App.4th 952, 984 “[T]he availability of a reasonable accommodation is a prerequisite to liability under section 12940(n)”).)

The evidence establishes Plaintiff suffered a disability for which he requested accommodation. (UF #9, 23-24.) Plaintiff was placed on modified duty consistent with his doctor’s instruction and worked modified duty for the remainder of the shift. (UF #26.) Plaintiff testified that he discussed his doctor’s note with Route Manager Tony Morales (UF #27.) Plaintiff’s time records show that he clocked out from work on the day of his injury at 6:13pm, consistent with his typical clock-out time and his pay records show he was paid for all hours worked that day. (UF #28.)

Defendant met its initial burden of persuasion as to the 5th cause of action under Code of Civil Procedure section 437c, subdivision (b)(3). The burden now shifts to Plaintiff. Because Plaintiff did not present any evidence in support to rebut Defendant’s evidence, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

- e. 6th Cause of Action: Failure to Accommodate - (Issue 12) There is no triable issue of material fact for this claim because Plaintiff was reasonably accommodated with either modified duty work or unpaid leave of absence*

The elements of a failure-to-accommodate claim are: (1) the plaintiff has a disability under the FEHA; (2) the plaintiff is qualified to perform the essential functions of the position; and (3) the employer failed to reasonably accommodate the plaintiff’s disability. (*Lui v. City and County of San Francisco* (2012) 211 Cal.App.4th 962, 970.)

Based on the same evidence presented for the 5th cause of action above, Defendant met its initial burden of persuasion as to the 6th cause of action under Code of Civil Procedure section 437c, subdivision (b)(3). The burden now shifts to Plaintiff. Because Plaintiff did not present any evidence in support to rebut Defendant’s evidence, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

- f. 7th Cause of Action: Retaliation – There are no triable issues of material fact because (Issue 13) Plaintiff cannot establish a prima facie case of retaliation as no evidence of causation exists; and (Issue 14) Defendant articulated a legitimate, nondiscriminatory reason for Plaintiff's termination, and Plaintiff cannot produce substantial responsive evidence of pretext*

The FEHA makes it unlawful for an employer to retaliate against an employee who reports or otherwise opposes prohibited discrimination or harassment. (Gov. Code, § 12940, subd. (h).) To establish a prima facie case of retaliation, a plaintiff must show: (1) he engaged in a protected activity; (2) the employer subjected plaintiff to an adverse employment action; and (3) a causal link exists between the protected activity and the employer's action. (*Yanowitz, supra*, 36 Cal.4th at 1042.) If the employee successfully establishes these elements and thereby shows a prima facie case exists, the burden shifts to the employer to provide evidence that there was a legitimate, non-retaliatory reason for the adverse employment action. (*Morgan v. Regents of University of California* (2000) 88 Cal.App.4th 52, 68.) If the employer produces evidence showing a legitimate reason for the adverse employment action, the burden shifts back to the employee to provide "substantive responsive evidence" that the employer's proffered reasons were untrue or pretextual. (*Loggins v. Kaiser Permanente International* (2007) 151 Cal.App.4th 1102, 1108-09.)

The evidence establishes Plaintiff suffered a disability for which he requested accommodation. (UF #9, 23-24.) Plaintiff was terminated 8 days after he reported his medical disability and requested accommodation. (UF #30-41.) The proximity in time between Plaintiff's termination and his request for accommodation establishes a causal link. (*Morgan, supra*, 88 Cal.App.4th at 69.)

However, as discussed above under the pretext discussion for disability discrimination, Defendant provides substantial evidence that Plaintiff was terminated for violating the terms of the CBA and Employee Handbook by accumulating 4 infractions within 8 months. (UF #5, 7-9, 11-12, 16, 19-41, 46-48.)

Accordingly, Defendant met its initial burden of persuasion as to the 7th cause of action under Code of Civil Procedure section 437c, subdivision (b)(3). Because Plaintiff did not present any evidence in support to rebut Defendant's evidence, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

- g. 8th Cause of Action: Failure to Prevent Retaliation or Discrimination – There are no triable issues of material fact because (Issues 16) this claim is derivative of the 4th and 7th causes of action and (Issue 17) Defendant had reasonable policies and practices in place to prevent discrimination*

Because the 4th and 7th causes of action are subject to summary adjudication, the 8th cause of action is also subject to summary adjudication because this claim is derivative

of the retaliation and discrimination claims. (*Okorie v. Los Angeles Unified School District* (2017) 14 Cal.App.5th 574, 597.)

- h. 9th Cause of Action: Unlawful Business Practices – There are no triable issues of material fact because (Issue 19) this claim is derivative of the other causes of action alleged in the FAC*

Because the 1st through 8th cause of actions are subject to summary adjudication, the 9th cause of action is also subject to summary adjudication because this claim is derivative of the first 8 claims. (*Okorie v. Los Angeles Unified School District* (2017) 14 Cal.App.5th 574, 597.)

- i. Punitive Damages – There are no triable issues because (Issue 20) there is no evidence that any alleged decisionmaker was an officer, director, or managing agent; and (Issue 21) there is no evidence any decisionmaker acted with fraud, oppression, or malice, or authorized or ratified the same*

Under Civil Code section 3294, punitive damages can be awarded if a plaintiff sufficiently proves the defendant engaged in conduct with “oppression, fraud or malice.” “Malice” is defined by statute as conduct “intended by the defendant to cause injury to plaintiff, or despicable conduct that is carried on by the defendant with a willful and conscious disregard for the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “Oppression” means despicable conduct that subjects a person to cruel and unusual hardship to conscious disregard of that person’s rights.” (*Id.* at (c)(2).) “Despicable conduct” is defined as “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (CACI 3940; *Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.)

To impose punitive damages against a corporate employer, the plaintiff must establish one of the following: (i) the employer had advance knowledge of the unfitness of the employee and employed him/her with a conscious disregard of the rights or safety of others, (ii) authorized or ratified the wrongful conduct, or (iii) was personally guilty of oppression, fraud or malice. (Civ. Code § 3294, subd. (b).) In actions against a corporate employer, these employer’s actions must be on the part of an officer, director, or managing agent. (*Ibid.*)

A managing agent is more than a mere supervisory employee; he/she is “someone who exercise[s] substantial discretionary authority over decisions that ultimately determine corporate policy.” (*White v. Ultramar* (1999) 21 Cal.4th 563, 573; see also *Crux v. Homebase* (2000) 83 Cal.App.4th 160, 167-168.)

The decision regarding Plaintiff’s termination was made by Defendant’s Area Director Steve Kanow (“Kanow”) and Area HR Director Tracie Vargas (“Vargas”), who have oversight responsibilities over Defendant and its employees, including Plaintiff. (UF #35, 37, 60-61.) Kanow and Vargas reviewed the information uncovered in the course of the

investigation of Plaintiff's August 9, 2022 injuries and determined that Plaintiff failed to immediately report his injury pursuant to the Employee Handbook. (UF #38.) Because this was Plaintiff's fourth infraction in an 8-month period in violation of the CBA, Kanow and Vargas determined Plaintiff should be terminated. (UF #39.) Neither Kanow nor Vargas has ever been an officer, corporate director, or managing agent for Defendant. (UF #58-59.) Accordingly, the decisionmakers did not act with fraud, oppression, or malice.

Defendant satisfied its initial burden under Code of Civil Procedure section 437c, subdivision (b)(3), shifting the burden to Plaintiff. Plaintiff failed to present evidence to rebut Defendant's evidence. Accordingly, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

The unopposed motion for summary judgment is granted.

A hearing re: proposed judgment is set for September 16, 2026, at 8:30 a.m. Moving party is ordered to submit to the court and serve on all parties a proposed final judgment by no later than September 1, 2026. Any objection to the proposed judgment must be submitted to the court and served on all parties by no later than September 11, 2026.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504234	HARTWELL vs DC LOGISTICS, LLC	MOTION TO BE RELIEVED AS COUNSEL FOR DC LOGISTICS, LLC

Tentative Ruling:

The motion is taken off calendar as this Court does not currently have jurisdiction to grant relief due to the arbitration stay.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2507156	COOPER vs COUNTY OF RIVERSIDE	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Tentative Ruling:

Where responses to document requests have been timely served but are deemed deficient by the requesting party (e.g., the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general), that party may

file a motion compelling further responses. (C.C.P., § 2031.310.) The motion must be served within 45 days after service of a verified response (C.C.P., § 1010.6(a)(4)) and must be accompanied by a declaration showing “a reasonable and good faith attempt” to resolve the issues informally outside of court. (C.C.P., § 2016.040, 2031.310(b)(2).) The motion to compel further responses “shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (C.C.P., § 2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) To establish “good cause,” the burden is on the moving party to show both relevance to the subject matter and specific facts justifying discovery. (*Glenfed Develop. Corp. v. Sup. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is established, the responding party has the burden to justify any objections made to document disclosure. (*Kirkland, supra*, 95 Cal.App.4th at 98.)

The court shall impose monetary sanctions against a party or counsel who unsuccessfully opposes a motion to compel, unless the court finds substantial justification or that sanctions would be unjust. (C.C.P., § 2031.310(h).)

Timeliness

Unless notice of the motion is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (C.C.P., § 2031.310(c).) Failure to comply with the discovery deadline “is only ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Plaintiff served verified responses on April 7, 2026, triggering the 45-day deadline. Defendant’s May 18, 2026 meet-and-confer letter identified only RFP Nos. 32, 39-52, 59, 60, 61, and 62 as deficient. On May 20, 2026, Plaintiff’s counsel offered a general two-week extension. After a June 10, 2026 telephonic meet-and-confer, defense counsel memorialized the discussion in a June 17 email stating that Plaintiff agreed to supplement responses “identified in our meet and confer letter” and separately addressed two categories: “medical records” (narrowed to 2015-present) and “communications with third parties” (no narrowing). The parties extended deadlines to July 8 for supplemental responses and July 15 for the motion. On July 8, 2026, Plaintiff supplemented only the requests identified in the May 18 letter. Defense counsel filed the motion on July 15, asserting the 62 requests it was challenging were discussed. Plaintiff disputes this.

The only written extension is the June 17 email which encompasses: (1) requests identified in the May 18 letter, and (2) requests falling within the “medical records” limited in time to 2015 to the present and “communications with third parties” categories. Based on the request descriptions, the 62 requests at issue in the motion can be categorized as follows:

- Group 1 (Medical Records): RFP Nos. 15, 63, 68-74, 88 (9 requests)
- Group 2 (Third-Party Communications): RFP Nos. 17-24, 37-38, 53, 64, 76-81, 83-87 (20 requests)
- Group 3 (All other Requests): RFP Nos. 1-14, 16, 25-31, 33-36, 54-58, 65-67, 75, 82, 89-92 (33 requests)

Given the written extension only addressed medical records and third-party communications, the court finds the motion is timely as to Groups 1 and 2 (29 requests). As there is no explicit written extension for the Group 3 RFPs, or even meet-and-confer discussion as to these specific requests, the motion is untimely as to Group 3 (33 requests). Accordingly, the court proceeds to the merits only as to the 29 timely requests.

Meet and Confer

The purpose of the meet-and-confer requirement under C.C.P. § 2016.040 is to “...to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order...This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1435.)

Defendant’s counsel sent a May 18 letter, participated in a June 10 telephonic conference, and exchanged emails through July 15. Plaintiff contends Defendant never identified deficiencies in the Group 1 and Group 2 requests beyond the May 18 letter. The court finds Defendant’s meet-and-confer efforts adequate as to the timely requests. The June 17 email addressed the “medical records” and “communications with third parties” categories, and the parties had a telephonic meet and confer and exchanged correspondence through the filing date.

Merits

Defendant contends Plaintiff’s responses contain meritless objections, fail to identify responsive documents by Bates number or category, and fail to produce documents or provide a privilege log. Plaintiff asserts she “made a diligent search and reasonable inquiry” and produced all non-privileged responsive documents.

Defendant demonstrates good cause for the 29 timely requests (Groups 1 and 2). These Group 1 requests seek: Plaintiff’s medical records pertaining to her treatment, including all related documents and bills (No. 15); communications with Plaintiff’s healthcare providers (No. 63); documents regarding Plaintiff’s medical condition, treatment history, and any documents supporting claims regarding health issues impacting employment (Nos. 68-74); notes or records from professionals reviewing or treating Plaintiff’s claimed emotional distress No. 88.

The Group 2 requests seek: all communications with current or former employees of the County and any witnesses regarding the Plaintiff's claims (Nos. 17-24); communications with the Employee Assistance Program about support services provided to the Plaintiff (Nos. 37-38); communications with the County's Human Resources department regarding the Plaintiff's complaints or requests (No. 53); communications regarding the termination or adverse employment decisions made post-employment (No. 64); communications about accommodations granted or requested due to Plaintiff's medical condition and any discussions related to her employment status (Nos. 76-81); various written communications regarding specific individuals involved in the disputes between Plaintiff and the Defendant's departments (Nos. 83-87). These requests are directly relevant to Plaintiff's contentions and Defendant's defenses. (*Williams, supra*, 3 Cal.5th at 541.)

Defendant also challenges Plaintiff's objections, specifically vague, ambiguous, overbroad, burdensome, harassing, equally available, improper method, as boilerplate and improper. These objections are overruled. The requests are reasonably particularized and directly relevant. Plaintiff's privacy objections fail because she placed her physical and emotional condition at issue. (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 38.) To the extent Plaintiff claims privilege or work-product protection, she must serve a compliant privilege log within 20 days. (C.C.P., § 2031.240.)

The motion is granted in part, denied in part. The court orders Plaintiff to serve verified, Code-compliant further responses to RFP Nos. 15, 17-24, 37-38, 53, 63-64, 68-74, 76-81, 83-88 without objections (except privilege/work product, supported by a privilege log) and produce all responsive documents within 30 days. As to all other requests deemed untimely (RFP Nos. 1-14, 16, 25-31, 33-36, 54-58, 65-67, 75, 82, 89-92), the motion is denied.

Sanctions

The court shall impose sanctions against a party or attorney who unsuccessfully opposes a motion to compel unless the court finds substantial justification or that sanctions would be unjust. (C.C.P., § 2031.310(h).) Given the split order granting the motion is in part (29 requests) and denying in part (33 requests) due to untimeliness, Plaintiff had substantial justification for opposing the motion. **Accordingly, the court denies both parties' requests for sanctions.**